



European Assembly Elections Act 1981

1981 CHAPTER 8

An Act to amend the provisions of Schedule 2 to the European Assembly Elections Act 1978 with respect to the supplementary reports affecting Assembly constituencies to be submitted by the Boundary Commission for any part of Great Britain following reviews of parliamentary constituencies. [19th March 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For paragraph 1 of Schedule 2 to the European Assembly Elections Act 1978 (which provides for an initial report of each Boundary Commission in connection with the setting up of Assembly constituencies, and is accordingly spent) there shall be substituted the following paragraph—

Amendment of
Schedule 2
to the
European
Assembly
Elections
Act 1978.
1978 c. 10.

“ 1. If—

- (a) an Order in Council has been made under section 3 of the 1949 Act giving effect, with or without modifications, to the recommendations contained in a report submitted to the Secretary of State under section 2(1) of that Act by the Boundary Commission for any part of Great Britain; or

- (b) the Boundary Commission for any part of Great Britain have submitted a report to the Secretary of State under section 2(1) stating that, in the opinion of the Commission, no alteration is required to be made in the parliamentary constituencies into which that part of Great Britain is divided;

the Boundary Commission shall thereupon proceed to consider the representation in the Assembly of the part of Great Britain with which they are concerned and shall as soon as may be after that time submit to the Secretary of State a supplementary report in accordance with paragraph 2 below.”.

(2) In paragraph 2 of that Schedule (supplementary reports by Boundary Commissions following general reviews of parliamentary constituencies), for the words from the beginning to “supplementary” there shall be substituted the words “The supplementary report which the Boundary Commission for any part of Great Britain is required under paragraph 1 above to submit to the Secretary of State shall be a”.

(3) For paragraph 3 of that Schedule (supplementary reports by Boundary Commissions following interim reviews of particular parliamentary constituencies) there shall be substituted the following paragraph—

“ 3. If—

- (a) an Order in Council has been made under section 3 of the 1949 Act giving effect, with or without modifications, to recommendations for the alteration of any particular parliamentary constituency or constituencies contained in a report submitted to the Secretary of State under section 2(3) of that Act by the Boundary Commission for any part of Great Britain; and

- (b) the result of the alterations in parliamentary constituencies made by the Order is that paragraph 9 below is no longer complied with in relation to one or more of the Assembly constituencies into which that part of Great Britain is divided;

the Boundary Commission shall thereupon proceed to consider in what manner the Assembly constituency or constituencies affected should be altered in order that paragraph 9 be complied with and shall as soon as may be after that time submit to the Secretary of State a supplementary report showing the alterations which they recommend should be made in the Assembly constituency or constituencies for that purpose.”.

(4) In paragraph 4(1) of that Schedule (application of certain provisions of the House of Commons (Redistribution of Seats) 1949 c. 66. Act 1949)—

(a) in paragraph (a), the words “report or”, in both places where they occur, shall be omitted; and

(b) in paragraph (b) the words from “(but ” to “above)” shall be omitted.

(5) In paragraph 12 of that Schedule (definitions), for the definition of “enumeration date” there shall be substituted the following definition—

“‘enumeration date’ means, in relation to any supplementary report of a Boundary Commission under this Schedule, the date on which the notice with respect to that report is published in accordance with section 2(4) of the 1949 Act”.

2. This Act may be cited as the European Assembly Elections Short title. Act 1981.